

MASTER FOOD DISTRIBUTION & LOGISTICS SERVICES AGREEMENT

Contract Ref: CTR-SYSCO-GHG-2026-001

Effective Date: January 1, 2026

Supplier: Sysco Food Services Solutions, LLC

Client: Global Hospitality & Food Services Group, Inc.

CONFIDENTIAL DOCUMENT

This Agreement contains proprietary commercial terms and conditions governing food storage, distribution, temperature-controlled logistics, and delivery services.

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Section 1: Parties and Purpose

This Master Food Distribution and Logistics Agreement ('Agreement') is entered into by and between Global Hospitality & Food Services Group, Inc. ('Client') and Sysco Food Services Solutions, LLC ('Supplier').

WHEREAS, Supplier is a premier distributor of food products, food-away-from-home merchandise, and logistics solutions; and WHEREAS, Client desires to retain Supplier to perform warehousing, shipping, inventory management, and case distribution services to its designated network of restaurants, educational venues, and hotels.

Section 2: Scope of Distribution Services

Supplier shall purchase, warehouse, sell, and distribute a massive catalog of food and non-food products to Client's locations as requested via purchase orders.

The services shall include standard case receiving, bulk warehousing, order selection, refrigerated line-haul transportation, and local last-mile delivery to restaurants, entertainment venues, and hospitality properties.

Section 3: Temperature-Controlled Logistics Requirements

Supplier must maintain strict cold chain controls for all perishable food products. Frozen products shall be stored and transported at 0°F (-18°C) or lower, and refrigerated items must be kept between +34°F and +38°F (+1°C to +3°C) at all times.

Supplier shall utilize active temperature data loggers inside all distribution vehicles and provide detailed cold chain custody reports to the Client upon request.

Section 4: Standard Delivery & Fuel Surcharges

Supplier agrees to distribute Dry Goods and Non-Food supplies at a fixed rate per case, and to apply monthly fuel surcharges governed by maximum invoice ceilings.

Section 4.2: Standard dry goods freight delivery shall be billed at a flat rate of USD 1.80 per case.

Section 4.3: Fuel surcharges applied to any single monthly billing cycle shall not exceed USD 1,500.00.
Under no circumstances shall the client be billed a fuel surcharge higher than USD 1,500.00.

Section 5: Volume Discount & Rebate Structure

All billing for temperature-sensitive cargo (Refrigerated Cargo Delivery) shall be calculated monthly on a volume tier basis in accordance with case quantities shipped.

Section 5.1: For monthly delivery volumes of Refrigerated Cargo: 0-999 cases, the unit rate is USD 3.50 per case. For 1,000-4,999 cases, the unit rate is USD 3.00 per case. For 5,000 cases and above, the unit rate is USD 2.50 per case.

Section 6: Quality Assurance & Cold Chain Compliance

Supplier shall implement hazard analysis critical control point (HACCP) programs at all distribution facilities.

Supplier warrants that all food products supplied under this Agreement are safe, wholesome, and comply with the Federal Food, Drug, and Cosmetic Act.

All products delivered must have a remaining shelf life of at least fourteen (14) days upon delivery, unless otherwise agreed.

Section 7: SLA Penalties for Delivery Interruptions

The Supplier commits to high operational standards of cold chain and milestone reliability. Evaluation of performance is conducted on a monthly cycle.

Section 7.1: Supplier guarantees that the temperature of all refrigerated and frozen food products shall be maintained within the specified ranges during transport. Should the temperature-controlled delivery compliance rate fall below 99.0% in any calendar month, the Supplier shall issue a credit equal to 10.0% of that month's total logistics charges.

Section 7.3: If the logistics transition milestone designated 'North-East Distribution Transition' is delayed beyond the agreed target date of October 15, 2026, the Supplier shall credit the Client a delay penalty of USD 1,000.00 per calendar day of delay.

Section 8: Early Payment Discounts & Payment Terms

Invoices shall be generated monthly. The standard payment window is Net-30 days from the invoice date. Early settlements are eligible for prompt payment discounts.

Section 8.2: A prompt payment discount of 2.0% shall apply to Standard Dry Goods Freight charges settled within 10 business days of the invoice date.

Section 9: Indemnification and Liability

Each party shall defend, indemnify, and hold harmless the other party, its affiliates, officers, directors, and employees, from and against any third-party claims, liabilities, losses, damages, or costs (including reasonable attorneys' fees) arising out of or relating to negligence or willful misconduct.

Under no circumstances shall either party be liable for any indirect, incidental, special, or consequential damages, including lost profits, arising out of this Agreement.

Section 10: Force Majeure & Service Disruptions

Neither party shall be liable for delays or failures in performance resulting from acts beyond its reasonable control, including, but not limited to, acts of God, labor disputes, material shortages, riots, acts of war, government regulations, or natural disasters.

In the event of a force majeure, the affected party shall notify the other party in writing within three (3) business days, describing the nature and expected duration of the delay.

Section 11: Regulatory Compliance and Auditing

Supplier warrants that its operations comply with all local, state, and federal regulatory standards, including FDA, USDA, and OSHA guidelines.

Client shall have the right, upon reasonable prior written notice, to audit Supplier's billing, logs, and delivery records to verify compliance with the pricing and SLA terms of this Agreement.

Section 12: Term and Termination

The initial term of this Agreement shall be three (3) years from the Effective Date, unless terminated earlier in accordance with the provisions herein.

Either party may terminate this Agreement for convenience upon ninety (90) days prior written notice, or for cause immediately upon written notice if the other party breaches any material term and fails to cure such breach within thirty (30) days.

Section 13: Governing Law and Dispute Resolution

This Agreement shall be governed by, and construed in accordance with, the laws of the State of Texas, without regard to its conflict of laws principles.

Any dispute, controversy, or claim arising out of or relating to this Agreement shall be resolved through binding arbitration in Houston, Texas, under the rules of the American Arbitration Association.

Section 14: Confidentiality and Data Protection

Each party agrees to maintain the confidentiality of all proprietary or non-public information disclosed by the other party, including but not limited to pricing structures, customer lists, and logistics methods.

This confidentiality obligation shall survive the expiration or termination of this Agreement for a period of five (5) years.

Section 15: Miscellaneous Provisions

This Agreement constitutes the entire agreement between the parties and supersedes all prior discussions, negotiations, or understandings.

No amendment or modification of this Agreement shall be valid unless in writing and signed by authorized representatives of both parties.

IN WITNESS WHEREOF, the parties hereto have executed this Agreement as of the Effective Date.